

26NWCV00360 26NWCV00360

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Case Number: 26NWCV00360 Hearing Date: July 28, 2026 Dept: P

GUEVARA v. MORPRO INC., ET AL.

CASE NO.: 26NWCV00360

HEARING: 07/28/2026 @ 9:30 AM

#11

TENTATIVE ORDER

I.

Specially Appearing Defendants Shipping

U.S.A. Corp., Alvaro Sanchez, and Consuelo M. Quinones's motion to quash service of summons and complaint is GRANTED.

II.

The complaint is DISMISSED as to Shipping

U.S.A. Corp., Alvaro Sanchez, and Consuelo M. Quinones.

Moving party to give notice.

Specially Appearing Defendants Shipping U.S.A. Corp.

(Shipping USA), Alvaro Sanchez, and Consuelo M. Quinones (Moving Defendants)

specially appear to quash the service of summons for lack of personal jurisdiction and dismiss this action.

Background

On January 29, 2026, Plaintiff Kevin Illedge Guevara (Plaintiff) filed this breach of contract action against Defendants MorPro Inc. (MorPro); Yamil Morales (Yamil); Xitlalic Morales; Zonayad Akbar; Anthony Morales; Shipping U.S.A. Corp., Alvaro Sanchez; Conseulo M. Quinones; and Does 1 through 25. This action arises out of an agreement between Plaintiff and Yamil in which Plaintiff agreed to make an advance payment of \$35,000 in exchange for Shipping USA to transport a specific 2017 Freightliner truck from Florida to Los Angeles County. (Complaint, ¶¶ 14-16.) On January 7, 2025, Plaintiff paid the full purchase price to the MorPro bank account and Yamil "provided Plaintiff with bill of sale and a copy of the certificate of title, which listed Shipping USA as the owner." (Complaint, ¶ 16.) The complaint alleges that Defendants failed to perform and in June of 2025, Plaintiff learned that Shipping USA did not receive the full payment and that Yamil and MorPro owed a prior debt to Sanchez for an unrelated incident. (Complaint, ¶ 18.) The complaint alleges Sanchez would not release the truck until Yamil satisfied the debt and would not refund the money. (Complaint, ¶¶ 19-21.) Plaintiff later demanded the return of his money from Yamil who responded by brandishing a golf club and threatening him. (Complaint, ¶¶ 23-24.)

The complaint alleges six causes of action: (1) Breach of Contract (2) Promissory Estoppel (3) Unjust Enrichment (4) Fraudulent Misrepresentation (5) Unfair Competition (6) Breach of Implied Covenant of Good Faith and Fair Dealing.

Legal Standard

A defendant may move to quash service of summons on or before the last day to plead in response to the complaint or within such further time as the court may allow for good cause for lack of jurisdiction. (Code Civ. Proc., § 418.10, subd. (a)(1).) "A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.)

"Personal jurisdiction may be either general or specific. A nonresident defendant may be subject to the general jurisdiction of the forum if his or her contacts in the forum state are 'substantial ... continuous and systematic.' [Citations.] In such a case, 'it is not necessary that the specific cause of action alleged be connected with the defendant's business relationship to the forum.'" (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 445-46 [Vons].) "If the

nonresident defendant does not have substantial and systematic contacts in the forum sufficient to establish general jurisdiction, he or she still may be subject to the specific jurisdiction of the forum. (Id.

at p. 446.) "A court may exercise specific jurisdiction over a nonresident defendant only if: (1) 'the defendant has purposefully availed himself or herself of forum benefits' [citation]; (2) 'the "controversy is related to or 'arises out of' [the] defendant's contacts with the forum" ' [citation]; and (3) ' "the assertion of personal jurisdiction would comport with 'fair play and substantial justice' " ' [citation]." (Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd. (2019) 31 Cal.App.5th 543, 553 [Jayone Foods].)

" 'When a defendant moves to quash service of process' [on jurisdictional grounds], 'the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction.' [Citation.] 'If the plaintiff meets this initial burden, then the defendant has the burden of demonstrating "that the exercise of jurisdiction would be unreasonable." ' [Citation.]" (Jayone Foods, supra, 31 Cal.App.5th at p. 553.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate. [Citation.] The plaintiff cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts. [Citation.]" (Strasner v. Touchstone Wireless Repair & Logistics, LP (2016) 5 Cal.App.5th 215, 222.)

Discussion

Moving Defendants move to quash the service of summons and complaint to them on the grounds that the Court does not have personal jurisdiction over them.

Moving Defendants are Florida residents and a Florida corporation. (Sanchez Decl., ¶¶ 2-5; Quinones Decl., ¶¶ 3-4.) As Plaintiff concedes that there is no general jurisdiction, the Court proceeds to assess specific jurisdiction. (Opp., 8:1.)

" 'The purposeful availment inquiry ... focuses on the defendant's intentionality. [Citation.] This prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject

to the court's jurisdiction based on' his contacts with the forum." (Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 269.) Thus, the "'purposeful availment' requirement ensures that a defendant will not be haled into a jurisdiction solely as a result of 'random,' 'fortuitous,' or 'attenuated' contacts [citations], or of the 'unilateral activity of another party or a third person.' [Citations.]" (Ibid.)

Moving Defendants

argue that they never purposefully availed themselves of California's laws.

Moving Defendants argue that the complaint does not identify any theory conferring jurisdiction. Moving Defendants argue that Yamil did not have authority to bind Shipping USA to any jurisdiction. "For a State to exercise jurisdiction consistent with due process, that relationship must arise out of

contacts that the 'defendant himself' creates with the forum." (Walden v. Fiore (2014) 571 U.S. 277, 284.) " '[The] unilateral activity of another

party or a third person is not an appropriate consideration when determining whether a defendant has sufficient contacts with a forum State to justify an assertion of jurisdiction." (Ibid., citations omitted.) Further, the " 'minimum contacts' analysis looks to the defendant's contacts with the forum State itself, not the defendant's contacts with persons who reside there." (Id., at p. 285.)

In opposition,

Plaintiff argues that Moving Defendants purposefully availed themselves of California by participating in the subject transaction to deliver a truck to a California resident.

Plaintiff argues that

Shipping USA was the title owner and dealer in possession of the subject truck.

Plaintiff also argues that the bill of sale and certificate of title show Shipping USA's involvement and MorPro's role in the transaction. (Opp., Exhs. 1, 2.)

Plaintiff also points to several texts he exchanged with Moving Defendants. The Court notes that these texts are not admissible. The texts are in the Spanish language and are not accompanied with a certification of the translation. (See Cal. Rules of Court, rule 3.1110(g) ["[e]xhibits written in a foreign language must be accompanied by an English translation, certified under oath by a qualified interpreter."].) Plaintiff

also refers to a Release Letter by MorPro, represented by Yamil, and addressed to Sanchez. (Opp., Exh. 4.)

In reply, Moving Defendants argue that Plaintiff is improperly characterizing the purchase of a truck as a direct transaction with Plaintiff. Moving Defendants argue that there were two separate transactions: (1) Shipping USA selling the truck to MorPro in Florida, but MorPro never paid for the truck and (2) MorPro's transaction with Plaintiff for the truck. Moving Defendants argue that since there were two transactions, Shipping USA never contracted with Plaintiff. Moving Defendants refer to Plaintiff's declaration attesting that he never communicated with Moving Defendants until June of 2025, which was after Plaintiff had not received the truck. (Guevara Decl., ¶¶ 18-19.)

The Court agrees that neither the complaint nor any evidence shows that Moving Defendants directly transacted with Plaintiff. Plaintiff declares that "[Yamil] told me the vehicle was located in Florida with Shipping U.S.A. Corp., which he described to me as connected with or associated with his company. He told me that, after I paid, the vehicle would be delivered to me in Los Angeles County." (Guevara Decl., ¶ 4.) The complaint alleges that Yamil provided the bill of sale and certificate of title to Plaintiff. (Complaint, ¶ 16.) Plaintiff attests that those documents confirmed to him Shipping USA was involved in the transaction and that the "the truck was being...sent in connection with MorPro Inc." (Guevara Decl., ¶ 8.) Moreover, the Release Letter is between MorPro, via Yamil, and address to Sanchez. (Guevara Decl., ¶ 10.)

The Court agrees with Plaintiff's evidence insofar as it shows that Moving Defendants were the owners of the truck and refused to release the truck based on a dispute with MorPro. (Sanchez Decl., ¶ 9.) However, these two facts do not demonstrate purposeful availment with the state of California. "The placement of a product into the stream of commerce, without more, is not an act of the defendant purposefully directed toward the forum State." (Asahi Metal Industry Co., Ltd. v. Superior Court of California, Solano County (1987) 480 U.S. 102, 112.) "Additional conduct of the defendant may indicate an intent or purpose to serve the market in the forum State, for example, designing the product for the market in the forum State, advertising in the forum State, establishing channels for providing regular advice to customers in the forum State, or marketing the product through a distributor who has agreed to serve as the sales agent in the forum State." (Ibid.)

Plaintiff does not show any conduct by Moving Defendants to indicate an intent or purpose to serve the market in California. Further, as discussed above, there is no evidence that Yamil acted as an agent on behalf of Shippers

USA. Moving Defendants assert that “Yamil Morales is not an authorized agent of Shipping USA, nor has Shipping USA ever taken any action that could reasonably suggest to third parties that Mr. Morales was acting as its agent.” (Sanchez Decl., ¶ 10.) To the extent that Plaintiff argues that their interactions after the alleged purpose confer jurisdiction, Plaintiff specifies that he initiated contact with Moving Defendants. (Guevara Decl., ¶ 19.) This is not equivalent to Moving Defendants initiating contact with Plaintiff or the state of California.

Based on the foregoing, the Court finds that Plaintiff does not meet his initial burden of showing purposeful availment. As each prong must be met to confer specific jurisdiction upon a defendant, the Court does not reach the subsequent prongs. “If the plaintiff is unable to demonstrate sufficient minimum contacts with the forum to justify jurisdiction, a court is not required to engage in the process of weighing the defendant's inconvenience of litigating in the forum against the plaintiff's interests in suing locally and California's interest in assuming jurisdiction.” (Strasner, *supra*, 5 Cal.App.5th at p. 226.)

Accordingly, Moving Defendants' motion to quash service of summons and complaint is GRANTED.

The complaint is DISMISSED as to Shipping U.S.A. Corp., Alvaro Sanchez, and Consuelo M. Quinones.